

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

L. L. L., an infant by his father and natural
guardian, PIERRE LYONS, and PIERRE LYONS,
individually,

Plaintiffs,

vs.

THE CITY OF NEW YORK, POLICE
OFFICER FRANCISCO GARCIA, POLICE
OFFICER CHRIS DEDE, POLICE OFFICER
KIRK BISHOP, and POLICE OFFICERS
"JOHN DOE" 1-4 (Police Officers whose
names are not yet known or identified),
Individually, and in their official capacities,

Defendants.

TO THE ABOVE-NAMED DEFENDANTS:

Index No.:

SUMMONS

JURY TRIAL DEMANDED

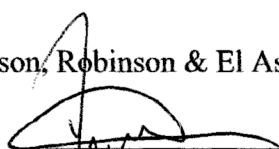
Plaintiff designates New York County as the
place of trial.

The basis of venue is:
Location of Occurrence.

YOU ARE HEREBY SUMMONED to answer the verified complaint in this action and
to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a
notice of appearance, on Plaintiffs' attorneys within twenty (20) days after the service of this
summons, exclusive of the day of service (or within thirty (30) days after the service is
complete if this summons is not personally delivered to you within the State of New York); and
in case of your failure to answer or appear, judgment will be taken against you by default for the
relief demanded in the verified complaint.

DATED: NEW YORK, NEW YORK
February 19, 2020

Nelson, Robinson & El Ashmawy, PLLC

By: 

Daniel X. Robinson, Esq.
Attorneys for Plaintiff
11 Park Place, Suite 711
New York, New York 10007
(212) 962-1740

SUMMONS

-- 1 --

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER FRANCISCO GARCIA
One Police Plaza
New York, New York 10038

POLICE OFFICER CHRIS DEDE
One Police Plaza
New York, New York 10038

POLICE OFFICER KIRK BISHOP
One Police Plaza
New York, New York 10038

POLICE OFFICER "JOHN DOE" 1
One Police Plaza
New York, New York 10038

POLICE OFFICER "JOHN DOE" 2
One Police Plaza
New York, New York 10038

POLICE OFFICER "JOHN DOE" 3
One Police Plaza
New York, New York 10038

POLICE OFFICER "JOHN DOE" 4
One Police Plaza
New York, New York 10038

1 SUPREME COURT OF THE STATE OF NEW YORK
2 COUNTY OF NEW YORK

3 L [REDACTED] L [REDACTED], an infant by his father and natural
guardian, PIERRE LYONS, and PIERRE LYONS,
individually,

4 Plaintiffs,

5 vs.

6 THE CITY OF NEW YORK, POLICE OFFICER
7 FRANCISCO GARCIA, POLICE OFFICER CHRIS
DEDE, POLICE OFFICER KIRK BISHOP, and
8 POLICE OFFICERS "JOHN DOE" 1-4 (Police
Officers whose names are not yet known or identified),
Individually, and in their official capacities,

9 Defendants.
10

Index No.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

11 Plaintiffs, L [REDACTED] L [REDACTED], an infant by his father and natural guardian, PIERRE
12 LYONS, and PIERRE LYONS, individually, by their attorneys, NELSON, ROBINSON & EL
13 ASHMAWY, PLLC, as and for a Verified Complaint against Defendants, THE CITY OF NEW
14 YORK, POLICE OFFICER FRANCISCO GARCIA, POLICE OFFICER CHRIS DEDE,
15 POLICE OFFICER KIRK BISHOP, and POLICE OFFICERS "JOHN DOE" 1-4 (Police
16 Officers whose names are not yet known or identified), Individually, and in their official
17 capacities, upon information and belief, set forth and allege as follows:

18 **PARTIES**

19 1. Plaintiff L [REDACTED] L [REDACTED] (hereinafter referred to as "Infant-Plaintiff") is an
20 African-American male individual infant who, at all times relevant to the within action, has been
21 a resident of the City, County, and State of New York.
22
23

1 2. Plaintiff PIERRE LYONS (hereinafter referred to as "Plaintiff"), the father and
2 natural guardian of Infant-Plaintiff, is an individual who, at all times relevant to the within
3 action, has been a resident of the City, County, and State of New York.

4 3. Defendant THE CITY OF NEW YORK (hereinafter referred to as "NYC"), at all
5 times hereinafter mentioned, was and still is a municipal corporation duly organized and existing
6 under, and by virtue of, the laws of the state of New York.

7 4. Defendant NYC, at all times here relevant hereto, owned, operated, managed,
8 maintained, directed, and/or controlled The New York City Police Department (hereinafter
9 referred to as "the NYPD"), a municipal subdivision thereof.

10 5. Defendant NYC and/or NYPD, at all times relevant hereto, employed Defendants
11 POLICE OFFICER FRANCISCO GARCIA (hereinafter referred to as "P.O. GARCIA"),
12 POLICE OFFICER CHRIS DEDE (hereinafter referred to as "P.O. DEDE"), POLICE OFFICER
13 KIRK BISHOP (hereinafter referred to as "P.O. BISHOP"), and POLICE OFFICERS "JOHN
14 DOE" 1-4 (Police Officers whose names are not yet known or identified) (all individually-named
15 Police Officers, inclusive of "John Does", hereinafter referred to collectively as "the Defendant
16 Police Officers"), who were trained, managed, directed and/or controlled by same.

17 **FACTS**

18 6. On or about November 28, 2018, at approximately 4:00 PM, Infant-Plaintiff was
19 accosted by multiple NYPD officers, including, but not limited to, Defendants P.O. GARCIA,
20 P.O. DEDE, and P.O. BISHOP, at the Northeast corner of Rivington Street and Pitt Street, New
21 York, New York 10002. Defendants P.O. GARCIA, P.O. DEDE, and P.O. BISHOP confronted
22 and questioned Infant-Plaintiff. Suddenly and without warning, Defendants P.O. GARCIA, P.O.

1 DEDE, and P.O. BISHOP unlawfully, wrongfully, willfully, unjustly, and intentionally struck
2 Infant-Plaintiff's face and body.

3 7. During said attack, Infant-Plaintiff suffered physical injuries requiring medical
4 attention as well as other severe psychological and other injuries.

5 8. Shortly thereafter, Infant-Plaintiff was arrested and transported to a NYPD Police
6 precinct. NYPD personnel failed to provide Infant-Plaintiff medical attention as a result of the
7 aforementioned beating until approximately eight hours after the arrest. Later that same day,
8 Infant-Plaintiff was released from NYPD custody to Plaintiff.

9 9. On or about January 16, 2019, at approximately 7:30 PM, Infant-Plaintiff was
10 accosted by multiple NYPD Officers, Defendant POLICE OFFICERS "JOHN DOE" 1-4,
11 outside of 19 ½ Pitt Street, New York, New York 10002.

12 10. Shortly thereafter, Infant-Plaintiff was handcuffed and arrested outside the same
13 location. He was subsequently placed in a NYPD vehicle with several NYPD personnel and
14 transported to 100 Centre Street, New York, NY 10013. Suddenly and without warning,
15 Defendant POLICE OFFICERS "JOHN DOE" 1-4 unlawfully, wrongfully, willfully, unjustly,
16 and intentionally struck Infant-Plaintiff's face and body.

17 11. On or about that same day, at approximately 11:00 PM, Infant-Plaintiff was once
18 again handcuffed, placed in an NYPD vehicle with several NYPD personnel, and transported
19 back to 19 ½ Pitt Street. Suddenly and without warning, Defendant POLICE OFFICERS "JOHN
20 DOE" 1-4 again unlawfully, wrongfully, willfully, unjustly, and intentionally struck Infant-
21 Plaintiff's face and body.

22 12. Infant-Plaintiff, at the time of the occurrence or occurrences which resulted in his
23 severe physical and psychological injury, was in the exclusive custody and control of the NYPD

1 and/or Defendants P.O. GARCIA, P.O. DEDE, P.O. BISHOP and/or the Defendant Police
2 Officers.

3 13. That at all times hereinafter mentioned, Defendants P.O. GARCIA, P.O. DEDE,
4 P.O. BISHOP and/or the Defendant Police Officers, were acting under color of state law and/or
5 in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or
6 practices of the State of New York, Defendant NYC, and/or the NYPD.

7 14. That at all times hereinafter mentioned, Defendants P.O. GARCIA, P.O. DEDE,
8 P.O. BISHOP and/or the Defendant Police Officers, were duly sworn Police Officers, trained
9 and/or managed by Defendant NYC and/or the NYPD, and were acting under the supervision of
10 Defendant NYC and/or the NYPD and according to their official duties.

11 15. That at all times hereinafter mentioned, each and all of the acts of Defendants
12 P.O. GARCIA, P.O. DEDE, P.O. BISHOP and/or the Defendant Police Officers were done while
13 acting within the scope of their employment of, and in furtherance of their employment by,
14 Defendant NYC and/or the NYPD.

15 16. Defendants P.O. GARCIA, P.O. DEDE, P.O. BISHOP and/or the Defendant
16 Police Officers are sued in their individual and official capacity as they acted within the scope of
17 their employment and under color of state law, to wit, under color of statutes, ordinances,
18 regulations, policies, customs, and/or usages of the State of New York and/or City of New York.

19 17. That a first Notice of Infant-Plaintiff's Claim, including the nature of the claim,
20 the date, time, and location thereof, and the manner in which the claim arose, was duly served
21 upon the New York City Comptroller's Office, on or about February 22, 2019.

1 18. That more than 30 days have elapsed since the first Notice of Claim has been
2 served upon Defendant NYC and said Defendant has neglected or refused to make any
3 adjustment or payment thereof.

4 19. That a second Notice of Infant-Plaintiff's Claim, including the nature of the claim,
5 the date, time, and location thereof, and the manner in which the claim arose, was duly served
6 upon the New York City Comptroller's Office, on or about April 5, 2019.

7 20. That more than 30 days have elapsed since the second Notice of Claim has been
8 served upon Defendant NYC and said Defendant has neglected or refused to make any
9 adjustment or payment thereof.

10 21. That this action is commenced within one (1) year and ninety (90) days after the
11 causes of action arose.

12 **AS AND FOR A FIRST CAUSE OF ACTION**
13 **ARISING FROM NEGLIGENCE**

14 22. Plaintiffs reallege and incorporate herein by this reference each and every
15 allegation contained in each preceding paragraph above as though fully set forth herein.

16 23. It was the duty of Defendant NYC and/or the NYPD to use reasonable care to
17 ensure Police Officers employed by them do not physically attack and/or otherwise abuse those
18 in their charge.

19 24. Defendant NYC and/or the NYPD, their agents, servants, and/or employees,
20 disregarded their duty to protect Infant-Plaintiff by negligently failing to prevent Defendants
21 P.O. GARCIA, P.O. DEDE, P.O. BISHOP and/or the Defendant Police Officers from utilizing
22 cruel, excessive, and/or unwarranted physical force and/or violence against Infant-Plaintiff by
23 virtue of Defendants P.O. GARCIA, P.O. DEDE, P.O. BISHOP and/or the Defendant Police

1 Officers threatening, attacking, and/or assaulting Infant-Plaintiff, inflicting injuries upon Infant-
2 Plaintiff, and/or taking no action to prevent these unlawful and/or abusive acts.

3 25. Defendant NYC and/or the NYPD, their agents, servants, and/or employees,
4 negligently and/or carelessly failed to take all reasonable and necessary precautions to prevent
5 the aforesaid occurrence.

6 26. It was the duty of Defendants P.O. GARCIA, P.O. DEDE, P.O. BISHOP and/or
7 the Defendant Police Officers to use reasonable care in the execution of their duties as Police
8 Officers and/or to act in a reasonably prudent manner in their interactions with the general
9 public.

10 27. Defendant NYC and/or the NYPD, via their agents, servants, and/or employees,
11 by and through Defendants P.O. GARCIA, P.O. DEDE, P.O. BISHOP and/or the Defendant
12 Police Officers negligently, carelessly, and/or recklessly acted in that they failed to use such care
13 in the performance of their official duties as Police Officers as reasonably prudent and careful
14 Police Officers would have used under similar circumstances, in that they violently and/or
15 unlawfully attacked Infant-Plaintiff, without cause and without regard for their official
16 obligations to protect the general public in their charge from such violence, and in otherwise
17 performing their official duties with respect to Infant-Plaintiff carelessly, recklessly and/or
18 negligently and that, as a result of the above-referenced attack which was caused by and through
19 their conduct, Infant-Plaintiff suffered severe physical and/or psychological damage.

20 28. As a result of the negligence of Defendants, Infant-Plaintiff suffered extensive,
21 severe, and serious personal injuries, extreme pain and suffering, emotional shock and mental
22 anguish, the need for further medical care and treatment, a decrease in his enjoyment of life, and
23 lost earning capacity, all without negligence on his part contributing thereto.

1 29. The foregoing injuries and damages to Infant-Plaintiff were actually and
2 proximately caused by virtue of the carelessness and/or negligence on the part of Defendants,
3 their servants, agents, and/or employees, and without any negligence on the part of Infant-
4 Plaintiff contributing thereto.

5 30. By reason of the above, Defendants are jointly and severally liable in that
6 Defendants' liability arises by reason of a non-delegable duty or by reason of respondeat
7 superior.

8 31. By reason of the foregoing, Infant-Plaintiff has been damaged in an amount that
9 exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

10 **AS AND FOR A SECOND CAUSE OF ACTION**
11 **ARISING FROM NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

12 32. Plaintiffs reallege and incorporate by reference each and every allegation as
13 contained in each preceding paragraph with the same force and effect as though each were fully
14 set forth herein.

15 33. Defendant NYC and/or the NYPD selected, hired, trained, retained, assigned,
16 and/or supervised all members of its Police Personnel, including, but not limited to, the
17 Defendants named herein.

18 34. Defendant NYC and/or the NYPD were negligent and/or careless when they
19 selected, hired, trained, retained, assigned, and/or supervised the Defendants named herein.

20 35. As a result of the negligence of Defendants, Infant-Plaintiff suffered extensive,
21 severe, and serious personal injuries, extreme pain and suffering, emotional shock and mental
22 anguish, the need for further medical care and treatment, a decrease in his enjoyment of life, and
23 lost earning capacity, all without negligence on his part contributing thereto.

1 36. The foregoing injuries and damages to Infant-Plaintiff were actually and
2 proximately caused by virtue of the carelessness and/or negligence on the part of Defendants,
3 their servants, agents, and/or employees, and without any negligence on the part of Infant-
4 Plaintiff contributing thereto.

5 37. By reason of the above, Defendants are jointly and severally liable in that
6 Defendants' liability arises by reason of a non-delegable duty or by reason of respondeat
7 superior.

8 38. By reason of the foregoing, Infant-Plaintiff has been damaged in an amount that
9 exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

10 **AS AND FOR A THIRD CAUSE OF ACTION**
11 **ARISING FROM LOSS OF SERVICES**

12 39. Plaintiffs re-allege and incorporate herein by this reference each and every
13 allegation contained in each preceding paragraph above as though fully set forth herein.

14 40. At all pertinent times hereinbefore and hereinafter mentioned, Plaintiff was and
15 still is the father of Infant-Plaintiff

16 41. Plaintiff was entitled to the services of his son, Infant-Plaintiff.

17 42. That, as a result of the negligence of Defendants, without negligence on the part
18 of Plaintiffs contributing thereto, Plaintiff was caused to be deprived of the services of his son.

19 43. By reason of the foregoing, Plaintiff has been damaged in an amount that exceeds
20 the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

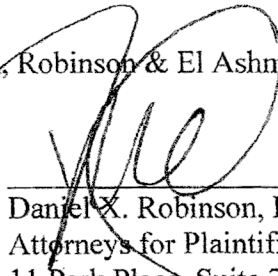
21 **PRAYER FOR RELIEF**

22 WHEREFORE, Plaintiffs pray for judgment in their favor and against Defendants in an
23 amount on each cause of action that exceeds the jurisdictional limits of all lower courts that

1 would otherwise have jurisdiction, together with the costs and disbursements of this action, and
2 interest as allowed by law.

3 DATED: New York, New York
4 February 19, 2020

5 Nelson, Robinson & El Ashmawy, PLLC

6 By: 

7 Daniel X. Robinson, Esq.
8 Attorneys for Plaintiffs
9 11 Park Place, Suite 711
10 New York, New York 10007
11 Tel: (212) 962-1740
12 Fax: (212) 962-2142
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12 of 12